

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 09/23/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=N0V1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C24-01131 CIVIL
CASE NAME: LESTER PASCUAL, AN INDIVIDUAL AND ON BEHALF OF ALL OTHERS SIMILARLY
SITUATED, VS. NV5, INC., A CALIFORNIA CORPORATION
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

This Case Management Conference trails the hearing on Line 15. This CMC is vacated. No appearance is required at the hearing on September 23, 2026.

2. 9:00 AM CASE NUMBER: C24-02750 CIVIL
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:
This Case Management Conference trails the hearing on Lines 16 and 17. This CMC is continued to October 21, 2026 at 9:00 a.m. No appearance is required on September 23, 2026.

3. 9:00 AM CASE NUMBER: C24-02882 CIVIL
CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:
This Case Management Conference trails the hearing on Lines 28, 29 and 30. Parties are ordered to appear, unless the tentative ruling is uncontested. If uncontested, this CMC is vacated and continued to January 22, 2017 at 8:30 a.m. Parties may appear remotely.

4. 9:00 AM CASE NUMBER: C24-03057 CIVIL
CASE NAME: SIOUX EWY VS. CITY OF WALNUT CREEK
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:
This Case Management Conference trails the hearing on Line 18. Parties are ordered to appear, unless the tentative ruling is uncontested. If uncontested, this CMC is vacated and continued to January 27, 2027 at 8:30 a.m. Parties may appear remotely.

5. 9:00 AM CASE NUMBER: C25-01135 CIVIL
CASE NAME: SUZETTE ALIDIO VS. KSL ASSOCIATE GROUP, INC.
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:
This case is stayed pending arbitration. This CMC is vacated. No appearance is required on September 23, 2026.

6. 9:00 AM CASE NUMBER: C25-01294 CIVIL

CASE NAME: FROILAN GALVAN MACIAS VS. BIANCOVERDE

HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THIS CASE SHOULD NOT BE DISMISSED
FILED BY:

TENTATIVE RULING:

This Motion trails the hearing on Line 20. Plaintiff or his Counsel is ordered to appear and to show cause as to why this case should not be dismissed for failure to appear at the CMC on September 3, 2026 and for failure to prosecute this case.

7. 9:00 AM CASE NUMBER: C25-01416 CIVIL

CASE NAME: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL
TRUST I VS. ANA MARIA SANCHEZ

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference is continued to October 21, 2026 at 9:00 a.m. See Tentative Ruling for Line 21.

8. 9:00 AM CASE NUMBER: C25-01877 CIVIL

CASE NAME: SUZETTE ALIDIO VS. KSL ASSOCIATE GROUP, INC.

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This case is stayed pending arbitration. This CMC is vacated. No appearance is required on September 23, 2026.

9. 9:00 AM CASE NUMBER: C26-00481 CIVIL

CASE NAME: MARIA ("MARBELLA") SALAS VS. ANTOINETTE JAMES

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearing on Line 23 Parties are ordered to appear, unless the tentative ruling is uncontested. If uncontested, this CMC is vacated and continued to March 26, 2027 at 8:30 a.m. Parties may appear remotely.

10. 9:00 AM CASE NUMBER: C26-00638

CIVIL

CASE NAME: KENNETH EVANS VS. DOES 1 TO 30

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

The CMC and the Motions for Lines 24 and 25 are continued, *sua sponte*, to October 21, 2026 at 9:00 a.m. The briefing schedule is closed. No further briefing is permitted. Parties are ordered to appear either in person or remotely for the continued hearing. No appearance is required on September 23, 2026.

Law & Motion

11. 9:00 AM CASE NUMBER: C22-00737

CIVIL

CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER

*HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16

(C)(1) FILED BY:

TENTATIVE RULING:

Summary

This is a continued hearing on Defendant Raymon Miller's Motion for Attorney's Fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs"). A series of procedural delays and continuances have resulted in the continuance of this Motion. As set forth below, the Court **denies** this motion.

Background

On May 13, 2026, the Court issued the following tentative ruling:

"Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal, filed on November 18, 2025 was continued from March 24, 2026 to April 15, 2026 because the Court was not satisfied that Defendant filed proof of service to Plaintiffs of this Motion.

On April 15, 2026, the Court convened the hearing and found, again, that procedural issues pertaining to service remain. (See Unreported Minute Order dated April 15, 2026). The Court continued the hearing from April 15 to May 13, 2026 and allowed Plaintiffs to file an opposition.

To date, no opposition has been filed with the Court. As such, there is good cause to grant Defendant's Motion for Attorney's Fees and Costs against Plaintiffs incurred on appeal.

1. Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal is granted.

2. Plaintiff shall pay \$30,000 in attorney's fees and \$1,022 in costs, for a total of \$31,022 no later than thirty (30) days from the date of service of this order.
3. Defendant's counsel shall prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling to the proposed order.
4. No appearance is required at the hearing on May 13, 2026."

The hearing on this motion was continued due to service issues and continued again due to unavailability of counsel. Plaintiffs filed an opposition on September 10, 2026.

Plaintiffs oppose Defendant Raymond R. Miller's motion for attorney's fees and costs on multiple procedural grounds, beginning with defective service. Mr. Miller failed to properly serve Plaintiffs with his post-judgment motion, emailing only two documents: (1) the Notice of Motion and a (2) Declaration, which is unburdened by factual support, memoranda of costs, or billing invoices. This failure to serve complete papers makes it difficult for the Court's ability to consider the motion.

Plaintiffs argue the Court lacks subject matter jurisdiction because Mr. Miller's noncompliance with mandatory California Rules of Court leaves the case in "Dismissed" status. The case concluded in 2023 when the trial court initially granted Mr. Miller's fee motion under Code of Civil Procedure § 425.16, and the appeal was unsuccessful. Following the January 23, 2026 remittitur, Mr. Miller failed to timely serve and file the mandatory Verified Memorandum of Costs required to trigger post-judgment proceedings.

The opposition further identifies critical procedural deficiencies under Rules 8.278, 3.1700, and 3.1702. Rule 8.278(c) mandates that a party claiming costs on appeal "must serve and file" a Verified Memorandum of Costs within 40 days after the remittitur issues—language Plaintiffs characterize as mandatory and jurisdictional. Mr. Miller also failed to file a Memorandum of Costs under Rule 3.1700. Additionally, he prematurely filed his fee motion on November 18, 2025—over two months before the January 23, 2026 remittitur—violating Rule 3.1702(c)'s timing requirements and never corrected this defect.

The Court, having considered Defendant Raymond R. Miller's "Notice of Motion for Attorney's Fees and Costs Incurred on Appeal," the Declaration of James O'Gallagher in support thereof, Plaintiffs' Opposition, and any supporting exhibits, hereby finds as follows:

Conclusion

1. Defendant Raymond R. Miller's Motion for Attorney's Fees and Costs is **DENIED with prejudice.**
2. This denial is based upon: (1) Defendant's failure to timely serve and file a Verified Memorandum of Costs as required by California Rule of Court 8.278(c); (2) Defendant's failure to file a Memorandum of Costs as required by California Rule of Court 3.1700; (3) Defendant's failure to comply with the requirements of California Rule of Court 3.1702(e); (4) Defendant's failure to file the motion within the time prescribed by California Rule of Court 3.1702(c); and (5) Defendant's failure to provide billing invoices or time records necessary to evaluate the reasonableness of the requested fees.
3. The above procedural deficiencies are incurable and constitute fatal defects warranting denial with prejudice.

4. Plaintiffs shall prepare a conforming order, attaching a copy of this tentative ruling, no later than five (5) days from the date of this hearing.

12. 9:00 AM CASE NUMBER: C23-00520

CIVIL

CASE NAME: JANE DOE VS. PROSPECT SIERRA SCHOOL

***HEARING ON MOTION IN RE: COMPEL DEFENDANT PROSPECT SIERRA SCHOOL TO COMPLY WITH ORDER AFTER MINOR'S COMPROMISE HEARING**

FILED BY: DOE, JANE

TENTATIVE RULING:

Summary

Plaintiff Jane Doe's ("Plaintiff") Motion to Compel Defendant Prospect Sierra School ("Defendant") to Comply with the Order After Minor's Compromise is unopposed and **GRANTED**.

Conclusion

1. The Court will execute the proposed amended order lodged with the Court on September 16, 2023, with the following modifications: (1) Sanctions are due no later than ten (10) days from the date of service of this order on Defendant; (2) The Court will reserve on issuing an order to show cause regarding contempt on Defendant and will, instead, issue a compliance hearing date of December 21, 2026 at 8:30 a.m.
2. If Defendant has complied with this order and the structured settlement is in place before the compliance hearing date, this compliance hearing will be vacated. Plaintiff shall submit a status report at least ten (10) calendar days before the hearing notifying the court of the status of compliance. If Defendant has complied, Plaintiff's status report should request to vacate the compliance hearing.
3. If Defendant has not complied with this order by the compliance hearing date, Defendant's representative and Defendant's counsel are ordered to appear **in person** at the compliance hearing in Department 16 to provide an explanation to the Court regarding the reasons for non-compliance.
4. Plaintiff's Counsel is ordered to prepare a conforming order, attaching a copy of this tentative ruling, no later than five (5) days from the date of the hearing.
5. No appearance is required at the hearing on September 23, 2023.

13. 9:00 AM CASE NUMBER: C23-03283

CIVIL

CASE NAME: CANDELARIO BARRAGAN VS. THE MORTGAGE LAW FIRM, PLC.

***HEARING ON MOTION IN RE: VACATE ANY DISMISSAL AND ANY RESULTING JUDGMENT**

FILED BY: BARRAGAN, CANDELARIO

TENTATIVE RULING:

Summary

Plaintiff Candelario Barragan's Motion to Vacate Dismissal is **DENIED**.

Background

On September 3, 2025, the Court sustained Defendants' demurrer to Plaintiff's First Amended Complaint with prejudice after Plaintiff failed to file a timely opposition, failed to contest the tentative ruling, and failed to appear at the hearing.

On or about April 22, 2026, more than six months after entry of the September 3, 2025 order, Plaintiff filed the instant Motion to Vacate Dismissal and Any Resulting Judgment pursuant to Code of Civil Procedure section 473, subdivision (b). The motion was not accompanied by a copy of the answer or other pleading proposed to be filed, as required by section 473(b).

Between August 20, 2025, and August 29, 2025, Plaintiff made multiple attempts to file a Second Amended Complaint without obtaining leave of court. The Clerk of the Court rejected these filings on August 20, 26, and 28, 2025, with explicit notations that leave of court was required via order, stipulation, motion, or *ex parte* application. Despite these warnings, Plaintiff did not file an opposition to the demurrer, request a hearing on the tentative ruling, or appear at the September 3, 2025 hearing.

Plaintiff previously filed a motion for reconsideration under Code of Civil Procedure section 1008, which the Court denied on January 7, 2026. Plaintiff also filed an ex-parte application seeking the same relief, which was similarly denied. The Court notes with concern that Plaintiff's counsel, despite his significant experience and membership in the State Bar since 1990, has consistently failed to comply with fundamental rules of civil procedure and this Court's orders.

Plaintiff's Position

Plaintiff, through counsel, now seeks relief under section 473(b) to vacate the dismissal entered after the September 3, 2025 demurrer hearing, arguing the dismissal resulted from procedural default rather than adjudication on the merits. Plaintiff contends that his failure to file a timely opposition, contest the tentative ruling, or appear at the hearing constitutes "mistake, inadvertence, or excusable neglect" warranting relief. Plaintiff points to the Court's January 7, 2026 minute order—which characterized the issue as sounding in section 473(b)—as confirmation that this statute provides the proper procedural vehicle. Plaintiff further argues that his prior motion for reconsideration under section 1008 was denied only because it was brought under the wrong statute, not because the underlying facts were insufficient. He documents counsel's unsuccessful efforts to secure substitute appearance counsel between August 29 and September 3, 2025, characterizing this as a documented law-office breakdown under compressed circumstances rather than deliberate abandonment.

Plaintiff further argues that substantial, unadjudicated merits issues remain regarding the validity of the foreclosure, chain of title, and debt-collection practices, supported by numerous recorded instruments showing shifting entities and roles. He highlights ongoing prejudice from active possession and eviction efforts, including a Notice for Possession, a November 3, 2025 letter from McCarthy Holthus identifying the communication as debt collection, and an actual unlawful detainer action filed in Contra Costa Superior Court (Case No. PS26-0198) with an Order for Service entered March 4, 2026. Plaintiff asserts that denial of relief would allow a default-based dismissal to function as a bridge to dispossession before his Homeowner Bill of Rights, Rosenthal Act, and quiet title claims are ever heard on the merits. He requests vacatur of the dismissal, restoration to the active docket, leave to file a Second Amended Complaint, and interim stay relief pending further proceedings.

Defendants' Position

Defendants Specialized Loan Servicing, LLC, Shellpoint Property Management, First Key Master Funding, and Mason Yanowitz ("Defendants") oppose the motion on multiple procedural and substantive grounds. Defendants argue that this is Plaintiff's third attempt at the same relief, following a denied reconsideration motion and a denied *ex-parte* application. Defendants contend the motion is untimely because it was filed on April 22, 2026, more than six months after the September 3, 2025 order, exceeding the statutory deadline for relief under section 473(b).

Defendants further argue that Plaintiff fails to satisfy the mandatory requirements of section 473(b), which requires the motion to be "accompanied by a copy of the answer or other pleading proposed to be filed therein." Citing *County of San Bernardino v. Mancini* (2022) 83 Cal.App.5th 1095, 1103, Defendants assert this requirement is mandatory and fatal to Plaintiff's motion.

Defendants also argue that section 473 "has no application" where the moving party knew of the alleged error before the dispositive ruling and made no attempt to remedy it, citing *Dineen v. San Francisco* (1940) 38 Cal.App.2d 486, 495. Defendants document that Plaintiff was repeatedly provided notice by the Clerk that filing a Second Amended Complaint required leave of court via order, stipulation, motion, or ex parte application. Yet Plaintiff attempted to file the SAC without leave on August 20, 26, and 28, 2025, and never filed an opposition to the demurrer or contested the tentative ruling. Defendants contend Plaintiff and his counsel ignored court orders and procedural rules and now seek to reverse decisions made over six months ago based on these multiple failures.

Defendants contend Plaintiff cannot establish "excusable neglect" or "mistake" because his counsel was aware of the procedural requirements but failed to comply, and the tentative ruling became the order of the Court when unchallenged under California Rule of Court 3.1308. They further argue Plaintiff cannot show diligence under the *Bettencourt* (*infra*) standard, as he had ample opportunity to defend the demurrer but instead pursued improper filing attempts. Finally, Defendants assert that discretionary relief should be denied because Plaintiff's failure to calendar and appear constitutes inexcusable neglect, citing *Yeap v. Leake* (1997) 60 Cal.App.4th 591, 603, and *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1424.

Analysis

Code of Civil Procedure section 473(b) provides that "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." Section 473(b) requires that any motion for relief "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein." This requirement is mandatory, and failure to provide the proposed pleading is fatal to the motion. (*County of San Bernardino v. Mancini*, *supra*, 83 Cal.App.5th at p. 1103.)

Section 473(b) imposes a six-month limitation period for seeking relief from judgment. An application for relief must be made "no more than six months after entry of judgment" to trigger mandatory relief provisions, and discretionary relief is similarly time-barred after this period.

Section 473 "has no application" where the moving party knew of the allegedly excusable error before the dispositive ruling and made no attempt to remedy the defect. (*Dineen v. San Francisco*, *supra*, 38 Cal.App.2d at p. 495.) To establish "excusable neglect," a moving party must demonstrate both the

nature of the mistake or neglect and that counsel was otherwise diligent in investigating and pursuing the claim. (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 276; *In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) The failure to calendar a hearing or appear is generally not considered "mistake, inadvertence, surprise or excusable neglect" as those terms are used in section 473. (*Price v. Hibbs* (1964) 225 Cal.App.2d 209, 217; *Yeap v. Leake* , *supra*, 60 Cal.App.4th at p. 603; *Huh v. Wang* , *supra*, 158 Cal.App.4th at p. 1424.)

Under California Rule of Court 3.1308, a tentative ruling becomes the order of the Court when the parties fail to timely request a hearing and notify the opposing party and the Court.

The Court has considered the papers filed in support of and in opposition to the motion, as well as the arguments of counsel. For the reasons set forth below, the Court finds that Plaintiff's Motion to Vacate Dismissal and Any Resulting Judgment fails to satisfy the statutory requirements for relief under section 473(b).

A. Failure to Comply with Mandatory Pleading Requirement

Plaintiff's motion is defective on its face. Section 473(b) expressly requires that a motion to vacate "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein." Plaintiff failed to attach any proposed pleading. This omission is not merely technical; it is a mandatory requirement the failure of which is fatal to the motion. (*County of San Bernardino v. Mancini* , *supra*, 83 Cal.App.5th at p. 1103.) This defect alone warrants denial.

B. The Motion Is Time-Barred

Plaintiff filed the instant motion on April 22, 2026, more than seven months after the Court entered its September 3, 2025 order sustaining the demurrer with prejudice. Section 473(b) establishes a six-month limitation period for seeking relief from judgment. Because Plaintiff's application was filed outside this statutory window, it is time-barred. The six-month period is jurisdictional. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273 [holding relief under Code of Civil Procedure section 473(b) could not be granted where motion for relief from default and default judgment was filed more than six months after entry of defendant's default]; *Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340-342.)

C. Plaintiff Cannot Establish Excusable Neglect or Mistake

Even if the motion were timely and procedurally compliant, Plaintiff cannot establish "mistake, inadvertence, surprise, or excusable neglect" under section 473(b). The record demonstrates that Plaintiff was repeatedly advised by the Court Clerk that filing a Second Amended Complaint required leave of court. Nevertheless, Plaintiff made no effort to obtain such leave through proper channels, file an opposition to the demurrer, or contest the tentative ruling. As Defendants correctly note, section 473 "has no application" where a party knows of the procedural defect and fails to remedy it. (*Dineen v. San Francisco* , *supra*, 38 Cal.App.2d at p. 495.)

The failure to calendar a hearing or appearance is generally not considered "mistake, inadvertence, surprise or excusable neglect" under section 473. (*Yeap v. Leake*, *supra*, 60 Cal.App.4th at p. 603; *Huh v. Wang* , *supra*, 158 Cal.App.4th at p. 1424.) Plaintiff's counsel was aware of the September 3, 2025 hearing date but chose not to appear. This constitutes inexcusable neglect, not a basis for relief.

D. Failure to Demonstrate Diligence

Plaintiff has failed to demonstrate reasonable diligence in pursuing his claims. Having been afforded multiple opportunities to properly seek leave to amend or defend against the demurrer, Plaintiff's failure to do so falls short of the diligence required under *Bettencourt v. Los Rios Community College Dist.*, *supra*, 42 Cal.3d at p. 276.)

E. Successive Motions

This motion constitutes Plaintiff's third attempt to obtain identical relief, following a denied motion for reconsideration under section 1008 and a denied ex parte application. The Court will not entertain successive motions for the same relief.

F. Reply Papers

The moving papers did not request relief based on the mandatory relief provision of section 473(b) for attorney fault; the moving papers requested relief based on the Court's discretionary authority citing excusable neglect. A motion under section 473 must expressly request relief under the mandatory attorney fault provision; the Court does not have to consider mandatory relief for attorney fault even if the declaration filed in support of the motion includes an admission of attorney fault. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125.) "[W]hen faced with a motion for relief under section 473, the trial court does not have to consider the availability of relief under the mandatory provision unless such relief is requested in an appropriate manner." (*Id.* at 1126.) Further, without notice that relief is sought under the mandatory provision, the opposing party does not have the opportunity to provide information on the reasonable compensatory legal fees and costs required to be awarded under section 473, subdivision (b). (*Id.* at 1125-1126.)

In the declaration of counsel filing in April 2026 in support of the motion, Plaintiff's counsel also does not address, much less admit, any error or fault by him that resulted in the demurrer not being opposed with a written opposition. (4/22/2026 Arizmendi Decl. ¶¶ 2-9.) He states, "My failure to timely oppose the demurrer, timely challenge the tentative ruling, and appear at the hearing resulted from **mistake and excusable neglect**. It was not intentional and did not reflect abandonment of Plaintiff's claims." (4/22/2026 Arizmendi Decl. ¶ 9 [emphasis added].) Any attempt to change the basis of the motion in Plaintiff's reply papers to a motion for mandatory relief based on Plaintiff's filings on September 16 and 17, 2026 makes the motion on that ground clearly untimely under any time calculation. The addition of new evidence on reply also violates the general rules of motion practice.].) (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537, 1538 [stating, "[t]he general rule of motion practice . . . is that new evidence is not permitted with reply papers," and finding no abuse of discretion in the trial court declining to consider evidence submitted with a reply].)

Conclusion

Good cause appearing, IT IS HEREBY ORDERED, ADJUDGED, AND DECREED as follows:

1. Plaintiff Candelario Barragan's Motion to Vacate Dismissal and Any Resulting Judgment is **DENIED**.
2. Plaintiff's motion fails to comply with the mandatory requirement of Code of Civil Procedure section 473(b) that the motion "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein." This defect alone warrants denial.

3. The motion was filed more than six months after entry of the September 3, 2025 order and is therefore time-barred.
4. Plaintiff cannot establish "mistake, inadvertence, surprise, or excusable neglect" under section 473(b). Plaintiff was repeatedly advised by the Court Clerk that filing a Second Amended Complaint required leave of court, yet Plaintiff made no effort to obtain such leave through proper channels, file an opposition to the demurrer, or contest the tentative ruling.
5. Plaintiff has failed to demonstrate reasonable diligence in pursuing his claims. Having been afforded multiple opportunities to properly seek leave to amend or defend against the demurrer, Plaintiff's failure to do so constitutes inexcusable neglect rather than excusable mistake.
6. This motion constitutes Plaintiff's third attempt to obtain the same relief, following a denied motion for reconsideration and a denied ex parte application. The Court will not entertain successive motions for identical relief.
7. Any request for new mandatory relief based on attorney fault made for the first time in the reply and declaration of counsel filed on September 16, 2026 is untimely and barred by the law and motion rules.
8. All future hearing dates are **VACATED**.
9. Defendants shall prepare and file a conforming proposed order, attaching a copy of this tentative ruling, no later than five (5) days from the date of this hearing.
10. Defendants shall prepare a judgment of dismissal no later than fourteen (14) days from the date of this hearing.

14. 9:00 AM CASE NUMBER: C24-00892 CIVIL
CASE NAME: LAXMI CAPITAL, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MARGARET MURPHY

***HEARING ON MOTION IN RE: FOR CHARGING ORDER AGAINST DEBTOR MARGARET MARIE MURPHY'S INTEREST IN MJD DEVELOPMENT, LLC - CONTINUED FROM 4/9/25 DUE TO JUDGE'S UNAVAILABILITY. CONTINUED BY STIPULATED AGREEMENT FROM 10/29/25 TO 1/14/25.**
FILED BY: LAXMI CAPITAL, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Summary

Plaintiff Laxmi Capital, LLC, A California Limited Liability Company ("Plaintiff" or "Judgment Creditor") Motion for Charging Order against Debtor Margaret Marie Murphy's ("Defendant" or "Judgment Debtor") Interest in MJD Development, LLC ("MJD") is **GRANTED** as set forth herein.

Background

Judgment Creditor seeks a charging order against Defendant's MJD to satisfy an unsatisfied California judgment exceeding \$5 million. Judgment Creditor contends that Murphy is the managing member of MJD, evidenced by MJD's July 2024 Answers to Writ of Garnishment identifying her as "Managing Member," and by her admissions during a Nevada judgment debtor examination where she testified that she takes "owner draws" from MJD, lives off management fees and owner draws from MJD, and

receives health insurance benefits from the company. Judgment Creditor also relies on the Nevada court's entry of an Amended Charging Order against MJD in April 2025, which remains in effect pending an appeal. Judgment Creditor argues that Corporations Code §17705.03 authorizes the court to charge Murphy's transferable interest and make all orders necessary to effectuate the charging order, including directing payment of "any sums or property" due to Murphy.

Judgment Debtor opposes the motion on four principal grounds. First, she asserts she holds no ownership interest in MJD, which is wholly owned by 3.0 Investments, LLC, and that she serves only as manager, not "managing member," of MJD. Second, Judgment Debtor contends that Judgment Creditor's request for "any sums" due to her is statutorily overbroad because charging orders are limited to "distributions" under Corporations Code §17701.02(f), which excludes compensation for services. Third, Judgment Debtor argues that any "disposable earnings" are exempt from enforcement under Code of Civil Procedure §§704.070 and 706.050. Fourth, Judgment Debtor contends the Nevada charging orders are procedurally flawed and were entered without adequate notice or opposition, and that the original Nevada charging order was vacated as overbroad.

In reply, Judgment Creditor argues that Judgment Debtor's admissions during her Nevada judgment debtor examination, which occurred after her opposition was filed, constitute un rebutted evidence of her ownership interest. Judgment Creditor contends that Judgment Debtor's testimony acknowledging she takes owner draws, lives off MJD funds, and receives distributions through related entities demonstrates an economic interest subject to a charging order. Judgment Creditor also argues that California courts have interpreted charging order statutes broadly, citing *Rice v. Downs* and *Blizzard Energy, Inc. v. Schaefer's*, and that the court should give persuasive weight to the Nevada court's Amended Charging Order.

After weighing the positions of both parties, the court makes the following findings of fact:

Findings Of Fact

On April 2, 2024, this Court entered a California Judgment against Defendants Margaret Marie Murphy ("Judgment Debtor") and the MMM Trust dated April 29, 2019, in the sum of \$5,006,717.38, plus post-judgment interest (the "California Judgment"). The California Judgment remains unsatisfied in whole or in part. The Judgment Debtor Judgment Debtor is the manager of MJD Development, LLC ("MJD"), a California limited liability company.

Based on Judgment Debtor's admissions during her Nevada judgment debtor examination, she has received and continues to receive distributions from MJD in the form of "owner draws," health insurance benefits, and payments from management fees. MJD holds a claim in the Chapter 11 bankruptcy of DS26, LLC in the amount of \$179,965. The Nevada Eighth Judicial District Court entered an Amended Charging Order against MJD on April 5, 2025, which remains in effect pending appeal.

Analysis

A. The Threshold Factual Dispute: Ownership Interest

The parties present this Court a classic battle of evidence regarding Judgment Debtor's economic relationship with MJD. Judgment Debtor relies on documentary evidence. Specifically, that the MJD Operating Agreement showing 3.0 Investments as the sole member and characterizes the "Managing Member" designation in the garnishment answer as a scrivener's error. Judgment Creditor relies on Judgment Debtor's sworn admissions in the Nevada judgment debtor examination, where she testified that she takes "owner draws" from MJD, lives off management fees and owner draws, and receives health insurance benefits from the company.

The court finds that the weight of the evidence favors Judgment Creditor on this threshold issue. While the Operating Agreement nominally shows 3.0 Investments as the sole member, Judgment Debtor's admissions that she takes "owner draws"—a term of art signifying distributions to owners—creates a triable issue of fact regarding whether she possesses a *de facto* transferable interest in MJD. Under Corporations Code §17701.02(aa), a "transferable interest" means "the right, as originally associated with a person's capacity as a member, to receive distributions from a limited liability company." The fact that Judgment Debtor receives distributions labeled as "owner draws" and lives off MJD's funds suggests she may hold an economic interest, even if the formal membership structure suggests otherwise.

B. Statutory Discretion Under §17705.03

Judgment Debtor correctly notes that §17705.03 uses the permissive "may" rather than the mandatory "shall," and cites *In re Marriage of Hokanson* (1998) 68 Cal.App.4th 987 for the proposition that "may" connotes discretionary action. However, Judgment Creditor correctly observes that statutory construction requires examining the apparent purpose and intention of the legislature. The charging order statute is designed to provide judgment creditors a remedy against LLC member interests while preserving the LLC's operational integrity. Where, as here, a judgment creditor has presented prima facie evidence of a debtor's economic interest in an LLC, the court's discretion is appropriately exercised in favor of granting the remedy.

C. Scope of the Charging Order: Distributions vs. "Any Sums"

Judgment Debtor's most persuasive legal argument concerns the scope of the requested charging order. Corporations Code §17701.02(f) defines "distribution" as "a transfer of money or other property from a limited liability company to another person on account of a transferable interest," and specifically excludes "amounts constituting reasonable compensation for present or past services" under §17704.05(g). Judgment Creditor's request for "any sums or property now or hereafter due" is facially overbroad.

However, Judgment Creditor's evidence that Judgment Debtor takes "owner draws" and lives off MJD funds, rather than receiving a formal salary, supports a narrower charging order limited to distributions. As the court held in *Rice v. Downs* (2021) 73 Cal.App.5th 213, payments made to satisfy

a member's personal obligations can constitute distributions subject to a charging order. The Nevada court's charging order, which remains in effect, provides additional persuasive authority that Judgment Debtor has a distributable interest in MJD.

D. Applicability of Exemptions

Judgment Debtor's exemption argument fails. Section 17705.03(e) preserves exemption laws applicable to a member's transferable interest, but the exemptions cited in Code of Civil Procedure §§704.070 and 706.050 apply to "disposable earnings" subject to wage garnishment. Judgment Creditor correctly notes that MJD's garnishment answer characterized payments to Judgment Debtor as "in lieu of compensation," suggesting they are not wages subject to garnishment exemptions. Moreover, distributions from an LLC are distinct from employment earnings. The exemption statutes do not apply to charging orders against LLC distributions.

E. Persuasive Effect of Nevada Orders

While decisions of sister states are not binding, they may be persuasive when addressing similar statutory provisions. Nevada Revised Statute §86.401 is substantively similar to California's §17705.03. The Nevada court's entry of an Amended Charging Order in April 2025, which was not vacated on reconsideration and remains in effect pending appeal, provides persuasive authority that Judgment Debtor has an interest in MJD subject to a charging order. The fact that Judgment Debtor is challenging that order does not diminish its persuasive weight; rather, it confirms that a court of competent jurisdiction found sufficient evidence to support a charging order.

F. The "Manager" vs. "Managing Member" Distinction

Judgment Debtor's technical argument that she is merely a "manager" and not a "managing member" is unpersuasive in light of her admissions. Under California law, the substance of the economic relationship controls over formal titles. Judgment Debtor's testimony that she takes "owner draws," controls MJD's finances, and receives distributions through related entities demonstrates that she exercises the rights of a member, regardless of her nominal title.

After considering the position of the parties and considering the applicable statutory and decisional authorities, the court finds good cause to make the following orders.

CONCLUSIONS

1. California Corporations Code §17705.03(a) provides that "on application by a judgment creditor of a member or transferee, a court may enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment."
2. A "transferable interest" is defined as "the right, as originally associated with a person's capacity as a member, to receive distributions from a limited liability company in accordance with the operating agreement." Cal. Corp. Code §17701.02(aa).
3. A "distribution" is "a transfer of money or other property from a limited liability company to another person on account of a transferable interest," but excludes "amounts constituting

reasonable compensation for present or past services." Cal. Corp. Code §§17701.02(f), 17704.05(g).

4. The Court has discretion under §17705.03 to enter a charging order where the judgment creditor has presented prima facie evidence of the judgment debtor's economic interest in an LLC.
5. Judgment Debtor's admissions that she receives "owner draws" and other payments from MJD on account of her economic interest, rather than as compensation for services, constitute prima facie evidence of a transferable interest subject to a charging order.
6. The exemption statutes cited by Judgment Debtor, Cal. Code Civ. Proc. §§704.070 and 706.050, apply to wage garnishment and do not exempt LLC distributions from charging orders.
7. The Nevada court's Amended Charging Order is persuasive authority that Judgment Debtor has an interest in MJD subject to a charging order under substantively similar Nevada law.

ORDERS

1. **Charging Order Granted.** Judgment Debtor Margaret Marie Murphy's interest in MJD Development, LLC is hereby charged with payment of the unsatisfied amount of the California Judgment entered by this Court on April 2, 2024, together with accrued interest and costs as provided by law.
2. **Lien Created.** This Order constitutes a lien on Judgment Debtor's transferable interest in MJD Development, LLC.
3. **Distributions To Be Paid To Creditor.** MJD Development, LLC is hereby directed to pay over to Judgment Creditor Capital, LLC any and all distributions that would otherwise be paid to Margaret Marie Murphy on account of her transferable interest in MJD, until the California Judgment is satisfied in full.
4. **Scope Limited To Distributions.** This charging order applies only to "distributions" as defined by Cal. Corp. Code §17701.02(f), being transfers of money or property from MJD to Murphy on account of her transferable interest. This charging order does not apply to reasonable compensation for present or past services rendered by Murphy as manager of MJD.
5. **Notice Required.** Within ten (10) days of the entry of this Order, Laxmi Capital, LLC shall serve a certified copy of this Order on MJD Development, LLC at its principal place of business and on any member or manager of MJD Development, LLC.
6. **Continuing Effect.** This charging order shall remain in effect until the California Judgment is satisfied in full or until further order of this Court.
7. **Reservation Of Rights.** The Court reserves jurisdiction to modify this Order as necessary to effectuate its terms and to address any claims of exemption properly raised by Murphy with respect to specific distributions.
8. **Motion For Reconsideration.** Any motion for reconsideration of this Order must be filed within ten (10) days of the date of entry of this Order, pursuant to California Code of Civil Procedure §1008.
9. Judgment Creditor shall prepare and e-file a proposed order conforming to the foregoing, attaching a copy of this tentative ruling, no later than ten (10) days from the date of the hearing.

15. 9:00 AM CASE NUMBER: C24-01131 CIVIL
CASE NAME: LESTER PASCUAL, AN INDIVIDUAL AND ON BEHALF OF ALL OTHERS SIMILARLY
SITUATED, VS. NV5, INC., A CALIFORNIA CORPORATION
*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS AND REPRESENTATIVE ACTION
SETTLEMENT
FILED BY: LESTER PASCUAL, AN INDIVIDUAL AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED,
TENTATIVE RULING:

Summary

Plaintiff Lester Pascual ("Plaintiff") Motion for Preliminary Approval of Class and Representative Action Settlement Agreement is **granted** as set forth herein. No appearance is required on September 23, 2026.

Background

This action is a wage and hour class action and Private Attorneys General Act ("PAGA") representative action brought by Plaintiff Lester Pascual against his employer NV5, Inc. ("Defendants") on behalf of all current and former non-exempt, hourly-paid employees in California. The complaint alleges that for at least four years prior to filing (April 26, 2024), Defendants systematically violated California labor laws by failing to pay proper overtime and minimum wages, failing to provide compliant meal and rest periods, and failing to issue accurate wage statements, among other violations.

Plaintiff alleges that Defendants engaged in a pattern of off-the-clock work practices, including requiring employees to perform pre-shift tasks before clocking in and post-shift tasks after clocking out, attend meetings off the clock, and respond to work communications without compensation. The complaint further alleges that Defendants manipulated time records through detrimental rounding and editing, failed to include all forms of remuneration (such as bonuses and allowances) in overtime rate calculations, and failed to provide full 30-minute uninterrupted meal periods for shifts over five hours and second meal periods for shifts over ten hours. Additionally, Defendants allegedly failed to authorize and permit ten-minute rest periods per four hours worked, required employees to remain on-call and carry communication devices during breaks, and failed to pay premium wages for non-compliant meal and rest periods.

The complaint also alleges violations of Labor Code sections 201-203 (waiting time penalties), section 204 (timely payment of wages), section 226 (inaccurate wage statements), section 226.7 (premium pay for missed breaks), section 227.3 (unused vacation pay), and section 2802 (failure to indemnify for business expenses such as cell phone use). Plaintiff seeks to certify a class under Code of Civil Procedure section 382 and brings representative claims under PAGA for Labor Code violations affecting all aggrieved employees, seeking civil penalties, unpaid wages, liquidated damages, interest, and attorneys' fees.

The Settlement Agreement provides for a gross settlement amount of \$4,000,000 to resolve class and PAGA claims on behalf of non-exempt, hourly-paid employees of NV5, Inc. in California from April 26, 2020, through February 4, 2026. The settlement is non-reversionary and subject to an escalation provision: if the total workweeks exceed 90,641 (a 10% increase over the estimated 82,401 workweeks), the gross amount increases proportionally at a rate of \$48.54 per additional workweek.

From the gross settlement, deductions include:

- (1) Attorneys' fees of 35% (\$1,400,000 unless escalated);
- (2) Litigation costs up to \$30,000;
- (3) Administration expenses up to \$12,000 to Phoenix Class Action Administration Solutions, Inc.;
- (4) A service award up to \$10,000 to Plaintiff Lester Pascual;
- (5) PAGA penalties of \$400,000 (with \$300,000 payable to the Labor and Workforce Development Agency and \$100,000 distributed to aggrieved employees); and
- (6) Applicable taxes, with Defendant paying the employer's share separately.

The net settlement amount available for distribution to approximately 876 class members is estimated at \$2,148,000, calculated at approximately \$26.07 per workweek or an average of \$2,452.05 per class member.

The PAGA period covers April 26, 2023, through February 4, 2026, with approximately 632 aggrieved employees receiving an estimated \$158.23 each from the \$100,000 PAGA employee share. Class members will receive distributions based on their pro rata share of workweeks worked during the class period. Any uncashed checks voided after 180 days will be transmitted to the *cy pres* recipient, Legal Aid at Work.

The settlement resolves claims for unpaid overtime, minimum wage violations, meal and rest period violations, waiting time penalties, wage statement violations, business expense indemnification, and unfair competition. The parties stipulate to class certification for settlement purposes only, and Plaintiff agrees to a broad release of claims including a waiver under Civil Code section 1542. The settlement follows extensive informal discovery, mediation before Monique Ngo-Bonnici, and consideration of Defendant's maximum exposure exceeding \$36 million against the risks of class certification and trial.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "[w]here the rights of the public are implicated, the additional safeguard of

judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

Plaintiff seeks attorney fees of \$1,400,000 representing thirty-five percent (35%) of the total settlement amount, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the lodestar cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.* at p. 505.)

Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval. The Court notes that this fee request is higher than the traditional 33.3% request and will review the declarations of counsel more thoroughly, along with the Lodestar calculations, at time of final approval.

Similarly, litigation costs of \$30,000 and the requested representative payment of \$10,000 for the named plaintiff/class representative will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
6. No appearance is required at the hearing on September 23, 2026.

16. 9:00 AM CASE NUMBER: C24-02750 CIVIL
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
*HEARING ON MOTION IN RE: MOTION FILED TO STRIKE PORTIONS OF PLAINTIFFS' SECOND
AMENDED COMPLAINT
FILED BY: BJ'S RESTAURANT INC.
TENTATIVE RULING:

The Court continues the hearing on this motion, *sua sponte*, to October 21, 2026 at 9:00 a.m.

17. 9:00 AM CASE NUMBER: C24-02750 CIVIL
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: BJ'S RESTAURANT INC.
TENTATIVE RULING:

The Court continues the hearing on this motion, *sua sponte*, to October 21, 2026 at 9:00 a.m.

18. 9:00 AM CASE NUMBER: C24-03057 CIVIL
CASE NAME: SIOUX EWY VS. CITY OF WALNUT CREEK
HEARING ON DEMURRER TO:
FILED BY: CITY OF WALNUT CREEK
TENTATIVE RULING:

Before the Court is Defendant City of Walnut Creek ("Defendant" or "Walnut Creek")'s demurrer. The Demurrer relates to Plaintiff Sioux Ewy ("Plaintiff" or "Ewy")'s Complaint for (1) motor vehicle liability under Vehicle Code section 17001; (2) general negligence pleading violation of Vehicle Code sections 17001, 22107, and 21658 as the standards of care; and (3) negligence per se.

Defendant demurs to Plaintiff's second and third causes of action for negligence and negligence per se on several grounds.

The Demurrer was originally scheduled for hearing on May 13, 2026 and in a tentative ruling, the Court sustained the then-unopposed Demurrer without leave to amend. However, the Court vacated its tentative ruling and continued the hearing to September 23, 2026 after hearing from both counsel.

Counsel for plaintiff then filed a combined opposition and motion for relief under CCP § 473(b). In the opposition, Plaintiff concedes the merits of the demurrer as to the negligence and negligence per se causes of action.

As a consequence, the Court sustains the Defendant's demurrer to the second and third causes of action, without leave to amend.

Defendant shall prepare and file a proposed order conforming to this ruling, attaching this tentative ruling, no later than five (5) days from the date of this hearing.

19. 9:00 AM CASE NUMBER: C24-03411

CIVIL

CASE NAME: JULIE ROMANOWSKI VS. AVI ELIAHU

*HEARING ON MOTION IN RE: BIFURCATE TRIAL AND TRY ISSUE OF LIABILITY BEFORE TRYING ISSUE OF DAMAGES FILED ON 5/8/26 BY DEFENDANTS AARON ELIAHU, BY AND THROUGH HIS GUARDIAN AD LITEM, AVI ELIAHU, AND PATRICIA ELIAHU

FILED BY:

TENTATIVE RULING:

Summary

Eliahu, Avi Eliahu, and Patricia Eliahu to bifurcate trial is **denied**. The denial is without prejudice to renew the motion at the time of trial.

Background

This action arises from a collision between two skiers on the Drifter run at Northstar California Resort in Placer County on December 24, 2022. Plaintiff Julie Romanowski alleges that Defendant Aaron Eliahu, then 15 years old, struck her from uphill while she was stopped near the edge of the run. Plaintiff alleges she suffered serious injuries in the collision, including a fractured pelvis, and that she will never return to her pre-accident physical condition. The parties dispute how the collision occurred, including whether Aaron Eliahu struck Plaintiff on the left or the right side of her body.

Plaintiff filed this personal injury action against Aaron Eliahu and his parents, Avi Eliahu and Patricia Eliahu, on December 17, 2024. The parties agree that the primary assumption of risk doctrine applies, so Plaintiff must prove that Aaron intentionally injured her or acted so recklessly that his conduct was outside the range of ordinary activity involved in the sport of skiing. The Court denied Defendants' motion for summary judgment on August 19, 2026. Trial is set for October 12, 2026.

Defendants now move to bifurcate trial so that liability is tried before damages. Plaintiff opposes.

Legal Standards

The California Code of Civil Procedure grants the trial court the authority to bifurcate issues for trial. (*Downey Savings & Loan Assn. v. Ohio Casualty Ins. Co.* (1987) 189 Cal.App.3d 1072, 1086 [bifurcation rests in the discretion of the trial court].) Section 598 authorizes the court, "when the convenience of the witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby," to order that the trial of any issue or part of any issue shall precede the trial of any other issue or part of any issue. (Code Civ. Proc., § 598.) Section 1048 authorizes the court to "order a separate trial of any cause of action . . . or of any separate issue or of any number of causes of action or issues," in order to further "convenience, or to avoid prejudice, or when separate trials will be conducive to expedition and economy." (*Id.*, § 1048.) While trial courts may bifurcate personal

injury trials so that liability is tried before damages, bifurcation should occur "when, in the opinion of the court, the facts of a particular case justify it." (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 888, fn. 8.)

Discussion

Defendants request an order bifurcating trial so that liability is tried before damages. They argue that a separate trial on liability would avoid prejudice and juror confusion and would promote the economy and efficiency of handling the litigation.

Defendants argue that Plaintiff's alleged injuries, surgery, hospitalization, and claimed permanent limitations create a significant risk that sympathy will influence the jury's decision on liability. The risk is greater here, they say, because Plaintiff must prove that Aaron Eliahu acted recklessly, and serious injuries can result from the inherent risks of skiing even when no one acts recklessly. Defendants add that a verdict in Aaron Eliahu's favor on liability would end the case and spare the Court and the parties a lengthy damages presentation.

Plaintiff responds that the same argument could be made in any personal injury case, and that a recklessness standard makes a jury no more susceptible to sympathy or confusion than a negligence standard. She notes that Defendants' motion does not address the convenience of witnesses, and she says that at least ten witnesses would have to testify twice if the trial is bifurcated and she prevails on liability. According to Plaintiff, she and Aaron Eliahu will both testify about the collision, and she will also call him in the damages phase to describe her condition immediately afterward. Ski patroller Kamp Wiebe will testify in the liability phase to the weather, the visibility, the snow conditions on Drifter, and the Northstar and National Ski Patrol skier responsibility codes. Because he was the first patroller on the scene and stayed with Plaintiff until she was placed in the helicopter, he will also testify in the damages phase to her initial condition and the treatment she received on the slope. Ski patroller Daniel Abbott will testify for similar purposes. Plaintiff's surgeon, Dr. Althausen, will testify on damages. He will also be offered on liability to testify that Plaintiff was struck on her right side and to the force needed to cause her injuries, which Plaintiff argues bears on Aaron Eliahu's speed. Plaintiff adds that five other ski patrollers who variously cared for her, spoke with Aaron Eliahu, and observed the scene are expected to testify on both liability and damages. She argues that requiring the eight nonparty witnesses to testify twice in a county where none of them lives would be particularly burdensome.

Plaintiff also argues that her injuries, though significant, are not so inflammatory that jury instructions cannot address any risk of sympathy. Finally, she argues that Defendants offer no estimate of the time or expense bifurcation would save, and that bifurcation would make the trial longer and more expensive if she prevails on liability.

In reply, Defendants argue that only Plaintiff will give significant testimony on both liability and damages. They say Plaintiff names only five witnesses in her opposition, not ten, and that her claim that five more ski patrol personnel will testify is speculative. Defendants took the depositions of Wiebe and Abbott, who they describe as the only patrollers with relevant knowledge, and they note that Plaintiff deposed no patrollers and has not shown that any others have pertinent information. In Defendants' view, neither Wiebe nor Abbott saw the collision or can testify to Aaron's speed,

movements, decision making, or state of mind. Nor did either diagnose or treat Plaintiff, so their damages testimony would be limited to her condition immediately after the collision and could be presented via deposition testimony. Defendants also say that the patrollers' testimony about snow conditions matters only to an off-piste theory that Plaintiff has abandoned. As for Aaron, Defendants say he will testify on liability only, because he was 15 years old at the time, he has no medical training, and he cannot opine about Plaintiff's injuries.

Defendants argue that Dr. Althausen has no personal knowledge of the collision and any testimony he provides on the mechanism of injury would be brief and based on history provided by counsel and could also be presented via deposition testimony. Defendants argue the majority Althausen's pertinent testimony concerns Plaintiff's injuries, treatment and prognosis, which belongs in a damages phase. Defendants contend that Plaintiff's actual motive in calling Dr. Althausen on the issue of liability is to put her admittedly significant injuries before the jury. They argue the evidence carries substantial emotional weight but does not show that Aaron Eliahu acted recklessly.

Having considered the parties' arguments, the Court will deny the motion.

Defendants have not met their burden to show that bifurcating liability and damages is appropriate. This case is set for a 10-day jury trial. There is no question that the trial would be shorter if liability is bifurcated from damages and the jury finds no liability. Opening statements and closing arguments would not address the damages issue, and the number of witnesses and the scope of their testimony would be truncated to the liability issue. But it is not appropriate to assume the jury will find no liability. And the consequence of bifurcation if the jury does find liability is unquestionably a lengthier trial requiring recalled witnesses, additional opening statements and closing arguments, and a second jury deliberation. Defendants' concerns about prejudice or bias are not unique to this case. They are present in almost any trial where injuries are significant.

Plaintiff has shown that evidence of her injuries is relevant to liability. Plaintiff testified she was struck on her right side, and Aaron Eliahu testified he struck her left side. (Whittington Decl., Exh. A, p. 62, Exh. B, p. 47.) Dr. Althausen testified to a reasonable medical probability that Plaintiff was struck on her right side. (*Id.*, Exh. C, p. 22.) He also testified that the pattern of Plaintiff's injuries indicated a great deal of force and that Aaron Eliahu "would have to be going very quickly." (*Id.*, Exh. C, pp. 157:16–158:13.) That testimony goes to how the collision occurred, to Aaron's credibility, and to his speed, which Plaintiff argues is a key part of her recklessness theory. Bifurcation therefore would not keep evidence of Plaintiff's injuries from the jury during the liability phase.

Disposition

Evidence of Plaintiff's injuries appears relevant to whether Aaron Eliahu acted recklessly, so it is not clear that bifurcation would limit its presentation. In any event, that evidence is not so extreme as to create an undue risk of bias, and the jury will be instructed to decide liability separately from damages. Accordingly, in the Court's discretion, the motion is **denied** at this time, but without prejudice to a renewed request at the time of trial.

20. 9:00 AM CASE NUMBER: C25-01294

CIVIL

CASE NAME: FROILAN GALVAN MACIAS VS. BIANCOVERDE

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PLTF

FILED BY: GALVAN MACIAS, FROILAN

TENTATIVE RULING:

Summary

Counsel Anastasia Bronski ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Plaintiff Froilan Galvan Macias ("Plaintiff"). The Motion is **granted** as set forth herein.

Background

In this employment case, Plaintiff alleges that his employer, Defendant Biancoverde, failed to pay overtime, failure to provide meal and rest breaks; failed to pay wages upon termination; failed to reimburse business expenses; failed to provide accurate wage statements; and retaliated against him for reporting wage and hour violations.

Withdrawing counsel filed a motion to be relieved as Counsel for Plaintiff on March 30, 2026, representing that "Due to a professional transition that will materially limit counsel's ability to continue representation in this matter, continued representation has become impracticable."

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain trial counsel, or to represent himself. No trial date has been set, there are no motions pending, and this case is less than two years from the date of filing.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on March 30, 2026. The withdrawal is effective immediately.

3. Defendant's Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court schedules a Case Management Conference and Order to Show Cause why this Case Should not be Dismissed for December 21, 2026 at 8:30 a.m. Withdrawing Counsel is ordered to provide notice to Plaintiff of this CMC, and to inform Plaintiff that he is ordered to appear. The Clerk's Office shall mail a notice of the order to show cause to Plaintiff at his last known address.
5. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).

21. 9:00 AM CASE NUMBER: C25-01416 CIVIL
CASE NAME: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I VS. ANA MARIA SANCHEZ
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I
TENTATIVE RULING:

Summary

Before the Court is a motion for judgment on the pleadings ("Motion") filed by plaintiff Southwest Financial LLC as Trust Manager for Southwood Financial Trust ("Plaintiff"). Defendant Ana Marie Sanchez ("Defendant") has filed an opposition.

For the reasons discussed below, the Court's ruling is to **continue** the hearing on Defendant's Motion to **October 21, 2026, at 9:00 a.m.**, in Department 16, so that Defendant may file the request for judicial notice that is referenced in the Notice and MPA. Defendant shall file the RJN in support of its Motion by October 7, 2026.

Meet and Confer

The meet and confer requirement has been satisfied. (Laura M. D'Anna Decl., ¶¶ 3-5; Code of Civ. Proc., § 439, subd. (a)(3)(B).)

Legal Standard for Motion for Judgment on the Pleadings

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc. § 438, subd. (c); see Weil & Brown, et al., Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290.) The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. (Civ. Proc., § 438(d); Rutter Civ. Pro., § 7:291.) Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. (*Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.)

Background: Facts Alleged in Complaint

Plaintiff is a debt buyer and was transferred all rights and title and interest in Defendant's student loans that were obtained from Sallie Mae. (Complaint, ¶¶ 20-22.) The total charge-off balance from account one, ending in 3295, was \$15,206.97. (*Id.* at ¶ 23.) The total charge-off balance from account two, ending in 3834, was \$21,423.23. (*Id.* at ¶ 23.) The last payment made by Defendant on both accounts was on January 3, 2023. (*Id.* at ¶¶ 12, 59.)

Plaintiff filed the Complaint on May 20, 2025, and asserts two claims for breach of contract, one for each account. (Complaint, ¶¶ 30-38, 65-75.) Plaintiff seeks the unpaid balance from each account, for a total of \$36,630.20. (*Id.* at p. 11.)

Discussion

Summary of Arguments

Plaintiff's Motion argues that a failure to state facts sufficient to constitute a defense may be raised by motion at any time during a proceeding. (Motion, pp. 1-6.) Plaintiff further argues that if judicial notice is granted, the Court can consider discovery admissions as those admissions cannot be reasonably controverted. (*Id.* at pp. 6-7.)

Defendant's opposition argues that Code of Civil Procedure section 438 tests whether pleadings state a claim or defense as a matter of law and that Plaintiff's Motion fails because it identifies no defect in Defendant's answer for this matter and relies entirely on the order deeming the requests for admissions admitted. (Opposition, p. 3.) Defendant asserts that RFAs that are deemed admitted are subject to withdrawal under Code of Civil Procedure section 2033.300, subdivision (b) and that Defendant has a strong case for that and plans to file a motion for withdrawal in a separate noticed motion. (*Id.* at pp. 3-5.) Defendant further argues that Plaintiff's exhibits to the Complaint contradict what Plaintiff is seeking and exhibits control when there is a conflict between a complaint and exhibits attached. (*Id.* at pp. 5-6.) Finally, Plaintiff asks for a continuance so that she may file and have heard a motion to withdraw admissions. (*Id.* at pp. 6-7.)

Plaintiff has not filed a reply.

Analysis

Here, Plaintiff's notice of motion states that "This motion will be based on this notice, the attached memorandum of points and authorities, ***the Request for Judicial Notice containing Plaintiffs Request for Admissions to Defendant and the Order Deeming Plaintiffs Request for Admissions to Defendant Admitted***, and the complete files and records of this action." (Notice of Motion, pp. 1-2.) Plaintiff's Motion argues that if the Court grants the request for judicial notice the Court can consider the discovery admissions as admissions that cannot be reasonably controverted. (*Id.* at p. 6.) Plaintiff has even filed a proof of service regarding the request for judicial notice with the moving papers, however, Plaintiff has seemingly inadvertently failed to properly file the request for judicial notice with this Court.

California Rules of Court rule 3.1113(l) requires that "[a]ny request for judicial notice must be made ***in a separate document*** listing the specific items for which notice is requested and must comply with rule 3.1306(c)." California Rules of Court rule 3.1306(c), requires that "A party requesting judicial

notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material. If the material is part of a file in the court in which the matter is being heard, the party must: (1) Specify in writing the part of the court file sought to be judicially noticed; and (2) Either make arrangements with the clerk to have the file in the courtroom at the time of the hearing or confirm with the clerk that the file is electronically accessible to the court.”

Here, due to Plaintiff’s failure to properly file a supporting request for judicial notice with the Court, the Court will continue the hearing on this Motion in order to allow Plaintiff to file the supporting request for judicial notice.

Ruling

The Court **continues** the hearing on Defendant’s motion for judgment on the pleadings until **October 21, 2026**, at 9:00 a.m., in Department 16, so that Defendant may file the request for judicial notice that is referenced in the notice and MPA. Defendant shall file the request for judicial notice in support of its Motion by **October 7, 2026**.

22. 9:00 AM CASE NUMBER: C25-02721
CASE NAME: LUIS ARMENTA GOMEZ VS. PREYANKA KANDA
HEARING ON DEMURRER TO: 2ND AMENDED ANSWER
FILED BY: ARMENTA GOMEZ, LUIS RICARDO

CIVIL

TENTATIVE RULING:

Summary

Plaintiffs and Cross-Defendants Luis Ricardo Armenta Gomez (“Gomez”), Jesus Villa Cuevas (“Cuevas”), and Gloria Villa (“Villa” altogether, “Plaintiffs”) bring this demurrer (“Demurrer”) to the Second Amended Answer (“Answer”) of Defendant and Cross-Complainant Preyanka Kanda (“Kanda” or “Defendant”) to the verified complaint of Plaintiffs.

For the reasons discussed below, Plaintiffs’ Demurrer to the Answer is **overruled**.

Legal Standard for Demurrer

A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds:

- (a) The answer does not state facts sufficient to constitute a defense.
- (b) The answer is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.
- (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral.

(Code Civ. Proc., § 430.20.)

“An important difference . . . in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer. [Citations.] This requirement, however, does not mean that the allegations of the complaint, if denied, are to be taken as true, the rule being that the demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 733.) “Another rule, particularly applicable to the case of a demurrer to the answer, is that each so-called defense must be considered separately without regard to any other defense.” (*Ibid.*) Further, “if one of the defenses or counterclaims is free from the objections urged by demurrer, then a demurrer to the entire answer must be overruled.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 734.)

Finally, “ ‘[n]o error or defect in a pleading is to be regarded unless it affects substantial rights.’ [Citations.] The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240.)

Demurrers to an answer are disfavored by most trial courts because they are usually of little or no utility in light of the existence of Form Interrogatory 15.1. Demurring to an answer does little more than create unnecessary motion practice when a defendant is merely trying to preserve its defenses for trial prior to obtaining discovery.

Background: Facts Alleged in Complaint & Cross-Complaint

Defendant and Gomez are former romantic partners. (Complaint, ¶ 12.) Around July 15, 2022, Defendant and Gomez acquired an interest in real property located at 509 Parker Avenue, Rodeo, CA 94572 (the “Property”). (Cross-Complaint, ¶¶ 6,8.) Around July 6, 2022, Defendant paid \$25,500 of her own money towards the down payment for the Property. (*Id.* at ¶ 9.) Around July 22, 2025, Defendant paid \$62,000 of her own money towards the down payment for the Property. (*Id.* at ¶ 10.) Also, around July of 2025, Gomez paid \$12,998.64 of his own money towards the down payment on the Property. (*Id.* at ¶ 11.) The balance of the purchase price was secured by a purchase money first deed of trust that was recorded on July 22, 2022. (*Id.* at ¶ 12.) Plaintiffs Cuevas and Villa co-signed loan documents in connection with the purchase of the Property, solely to assist with financing, and there was no intent for them to hold any legal, equitable, or beneficial interest in the Property. (*Id.* at ¶ 13.) The entire down payment for the Property was paid exclusively by Defendant and Gomez. (*Id.* at ¶ 15.) Defendant contributed a total sum of \$87,500.00 towards the down payment, and Gomez contributed a total sum of \$12,998.64 towards the down payment. (*Ibid.*) From July 2022, until August of 2024, Defendant and Gomez shared the monthly mortgage payments equally. (*Id.* at ¶ 16.) Neither Cuevas nor Villa made any financial contributions toward the down payment, purchase price, or any other expense related to the Property nor have either of them ever resided at or occupied the subject Property. (*Id.* at ¶ 14.) Subsequent to these events taking place, the parties’ relationship deteriorated. (Complaint, ¶ 16.)

On or about July 31, 2024, Gomez voluntarily vacated the Property and informed Defendant that he, along with Cuevas and Villa, irrevocably renounced and relinquished any and all rights, title, interest,

claim, obligation, or liability, whether legal or equitable, in or to the Property. (Cross-Complaint, ¶ 18.) Thus, since September 2024, to the present, Defendant has solely paid all expenses associated with the Property, including, but not limited to, the monthly mortgage payment, property taxes, homeowner's insurance, utilities, maintenance, repairs and improvements. (*Id.*, at ¶ 17.) Additionally, Defendant has been solely responsible for the general upkeep and non- financial obligations associated with maintaining the Property. (*Ibid.*)

On September 23, 2025, Plaintiffs filed a lawsuit for partition by sale as they each seek to recover the value of their joint tenancy ownership in the Property. (Complaint, pp. 1-6.) On November 18, 2025, Defendant filed the Cross-Complaint, asserting a single claim for imposition of a resulting trust. (Cross-Complaint, pp. 1-7.)

Discussion

Plaintiffs argue that Defendant's second amended answer is insufficient as a matter of law, and facially inadequate. (MPA ISO Demurrer, pp. 1.) Specifically, Plaintiffs argue that the resulting trust defense fails as it seeks only remedies. (*Id.* at pp. 1, 3-4.) Further, Plaintiff argues that the equitable defenses are fatally flawed as a matter of law and the waiver defense does not meet the legal standards for waiver that are required in a partition action. (*Id.* at pp. 1, 4-6)

Defendant argues that Plaintiffs failed to timely file their demurrer because Code of Civil Procedure section 471.5, subdivision (b), requires a demurrer to an answer to be made 10 days after service of the answer, and here, service was on February 11, 2026, and the demurrer was not filed until April 2, 2026. (Opposition, pp. 4-5.) Defendant argues that Plaintiff did not obtain an extension of time to file their Demurrer as the meet and confer statute requires a party to file and serve the required declaration on or before the date on which a Demurrer would be due, and here, Plaintiffs did not file any such declaration. (*Id.* at p. 5.) Defendant also contends that Plaintiffs have not shown good cause for the Court to consider their untimely demurrer. (*Id.* at pp. 5-6.) Next, Defendant asserts that the resulting trust defense is appropriate and the waiver and unfairness defenses are adequately pled. (*Id.* at pp. 6-11.) Finally, Defendant also argues that their equitable defenses are pled with sufficient particularity and that is the demurrer is sustained, that leave to amend should be granted.

On reply, Plaintiffs argue that the Court should consider the Demurrer on the merits because although the answer was served on February 11, 2026, it was not filed until February 19, 2026. (Reply, pp. 2-3.) They also assert that Defendant cannot rely on extrinsic evidence to cure deficiencies in the Second Amended Answer. (*Id.*, at pp. 3-5.) Plaintiffs also contend that even if a resulting trust may be asserted defensively in a partition action, Defendant still fails to adequately plead that defense. (*Id.* at p. 5.) Plaintiffs reiterate that Defendant fails to plead a valid waiver of the right to partition. (*Id.*, at pp. 5-6.) Next, Plaintiffs argue that unfairness or prejudice is not an independent defense to the statutory right to partition. (*Id.* at pp. 6-7.) Finally, Plaintiffs argue that Defendant has not shown how further amendment would cure these defects and asks the Court to sustain their demurrer without leave to amend. (*Id.* at p. 7.)

Timeliness of Demurrer

The Court will not consider Plaintiffs' untimely Demurrer to Defendant's Answer. Even assuming arguendo that Defendant served the Answer on the date that it was filed, February 19, 2026, Plaintiffs did not attempt to meet and confer until the last day allowed to file, which is 10 days after February 19, 2026, plus two court days for e-service, or March 3, 2026. (MPA ISO Demurrer, p. 2; Reply, p. 3.)

Further, Plaintiffs did not file a Code of Civil Procedure section 430.41, subdivision (a)(2) declaration, which would have needed to be filed on March 3, 2026, in order to obtain an additional 30 days. It is unclear whether such a declaration could have even been filed, as there is no evidence that the parties *were not able to* meet and confer at least 5 days before the date the responsive pleading was due. Just because they did not so meet and confer, does not mean that they would not have been able to.

As per *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 282-283, courts have discretion to consider late-filed demurrers if they wish. In *McAllister*, there was a stipulation between the parties that allowed the demurrer to be filed late. (*Id.* at p. 281.) Here, there was no such stipulation. Further, the demurrer was not filed just a couple of days late, it was filed at best 30 days late, which is materially late and beyond the tardiness that this Court is willing to overlook.

Ruling

Plaintiffs' Demurrer to the Second Amended Answer of Defendant is **overruled**.

23. 9:00 AM CASE NUMBER: C26-00481 CIVIL
CASE NAME: MARIA ("MARBELLA") SALAS VS. ANTOINETTE JAMES
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: JAMES, ANTOINETTE
TENTATIVE RULING:

Summary

Defendants American Automobile Association of Northern California, Nevada & Utah. ("AAA") and Antionette James move to compel arbitration of plaintiff's claims. The motion is **granted**. A court must order arbitration if it determines that a valid agreement to arbitrate exists. Here, one does, as discussed below.

This action stayed pending arbitration. The Court sets a case management conference for an update regarding the status of the arbitration on March 26, 2027 at 8:30 a.m. in this Department.

I. Background

Plaintiff, Maria ("Marbella") Salas, worked for AAA from June 2002 through March of 2025 at which time plaintiff contends she was constructively discharged. Plaintiff filed her complaint in this action on February 10, 2026 alleging wrongful termination among other causes of action.

Defendants answered the complaint, expressly reserving the right to compel arbitration, and on May 26, 2026, they filed this “petition” (perhaps more accurately a “motion” since filed in a pending proceeding, see *Roberts v. Packard, Packard & Johnson* (2013) 217 Cal.App.4th 822, 834).

Defendants assert that the present dispute is subject to an arbitration agreement between the parties and that the enforceability of the agreement is governed by the Federal Arbitration Act, a position plaintiff does not dispute.

In support of its motion, defendant submits declarations from its counsel and three of its employees. Collectively, the employee declarations provide evidence related to plaintiff’s execution of the arbitration agreement at issue. The declaration from counsel indicates plaintiff’s refusal to stipulate to arbitration and attaches the applicable JAMS Employment Arbitration Rules and Procedures.

Plaintiff opposes the motion, arguing she is not required to arbitrate because defendant fails to establish an enforceable agreement, because the agreement is unconscionable, and because defendant is a party to other age discrimination lawsuits venued in Contra Costa County and a motion to consolidate has been filed. Plaintiff submits her own declaration, wherein she describes having been required to sign the 2024 arbitration agreement while a male manager stood over her. She does not dispute signing the document. Plaintiff states she received no explanation about the document and was not permitted to answer questions from other employees despite being instructed to tell the other employees to sign the arbitration agreement. Plaintiff also submits a declaration of Dr. Jay Finkelman, who purports to be an “expert about human resources management.”

Plaintiff’s opposition cites *Hasty v. American Automobile Assn. etc.* (2023) 98 Cal.App.5th 1041. There, AAA lost a motion to compel arbitration in the trial court because the trial court found the agreement to be unconscionable. AAA appealed and the Third District Court of Appeal affirmed. Plaintiff relies on *Hasty* in asserting the agreement here is unconscionable.

AAA replies that the agreement at issue in this motion was a version created after the *Hasty* decision specifically to address some of the issues identified in that case. With the reply, AAA objects to the Court taking judicial notice as requested by plaintiff, and to evidence contained in plaintiff’s declarations.

II. Evidentiary Matters

Plaintiff requests notice of a motion filed in another case which seeks to consolidate multiple lawsuits pending in this Court against AAA. Defendants’ objections to such notice are limited to the truth of any factual assertions, evidentiary summaries, or legal conclusions contained in the motion. The Court agrees that the scope is limited as described by defendants. Accordingly, while the request is **granted**, the Court does not accept the truth of any matters in that document.

With its reply, defendant filed evidentiary objections to the Declaration of Dr. Jay Finkelman and the Declaration of Plaintiff Maria (“Marbella”) Salas. These objections are **sustained**.

III. Standard

"A petition to compel arbitration should be granted if the court determines that an agreement to arbitrate the controversy exists. (Code of Civil Procedure § 1281.2.) The threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; Code of Civil Procedure §§ 1281.2, 1290.2.) The moving parties bear the burden of proving the existence of the

arbitration agreement by a preponderance of the evidence. (*Rosenthal*, 14 Cal.4th at 413; *Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.)

Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove its defense. (*Alvarez*, 60 Cal.App.5th at 580.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; Code of Civil Procedure § 1281.)

IV. Discussion

A. Existence of Agreement

While plaintiff argues AAA failed to meet its burden to show an agreement, Leslie Dazzi declares that she “accessed and signed both the Arbitration Agreement and Confidentiality Agreement on May 20, 2024.” (Declaration of Leslie Dazzi in Support of Motion, hereinafter “Dazzi Decl.,” ¶15.) In opposition, the evidence submitted by plaintiff does not rise to the level of negating this showing. While plaintiff contends a “male manager” stood above her while she reviewed and signed the documents, and while this is relevant to the discussion of procedural unconscionability, it is insufficient to undermine a written agreement showing objective indicia of consent, as required under California law. Plaintiff also raises arguments related to the burying of an arbitration agreement in a lengthy employee handbook—not a circumstance present in this case.

Defendant’s business records show plaintiff’s signature on a standalone arbitration agreement in May 2024. Plaintiff does not deny that the signature was hers and while she notes the short timeframe between opening the document and signing, the evidence could just as easily show plaintiff’s own choices not to review the document thoroughly for whatever reasons she might have had. Plaintiff does not describe any affirmative actions taken to threaten her beyond the typical pressure one might feel to keep their job.

Defendants have therefore met their burden to show there is an arbitration agreement at issue. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-19.)

B. Unconscionability

Accordingly, we turn to the question of whether the arbitration agreement is unconscionable pursuant to the standards articulated in *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83 (“*Armendariz*”). To briefly recapitulate the principles of unconscionability, the doctrine has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results. Procedural and substantive unconscionability “‘must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.’ [Citation.] But they need not be present in the same degree. ... [T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Id.* at 114.)

1. Procedural Unconscionability

The procedural element of an unconscionable contract generally takes the form of a contract of adhesion, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it. (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071, citing *Armendariz*, 24 Cal.4th at 113-14.) An agreement is typically a

contract of adhesion if, like here, the employee's consent was imposed by the employer as a condition of employment. (*Hasty v. American Automobile Assn.* (2023) 98 Cal. App. 5th 1041, 1055.)

Plaintiff argues the arbitration agreement was procedurally unconscionable, citing her lack of choice in the matter, reliance on her job, and the circumstances under which she signed: with a "male executive employee" standing over her and in a rush for time. (Declaration of Plaintiff Maria Salas in Support of Opposition, hereinafter "Plaintiff Decl.," ¶¶12-13.)

Plaintiff's declaration does not address the declaration from the manager of the Menlo Park branch at the time, Michael Kaufmann, which states he did not stand over her. Plaintiff simply contends she does not remember the male executive's name. Plaintiff contends no one explained the arbitration agreement to her, and she does not remember receiving any email. Still, plaintiff herself states she had already told other employees to sign the document at the instruction of her superiors, so it appears unlikely that she was completely surprised.

In any event, defendants do not dispute some degree of procedural unconscionability. Overall, the Court does not find plaintiff's evidence, when viewed in light of defendants' evidence, to show an unusual degree of procedural unconscionability. Since the presence of some level of procedural unconscionability is not a reason to deny enforcement, the Court also looks to whether plaintiff shows substantive unconscionability.

2. Substantive Unconscionability

Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create overly harsh or one-sided results. (*Armendariz*, 24 Cal.4th at 114.) A contract term is not substantively unconscionable when it merely gives one side a greater benefit. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246, internal quotations omitted.) "Not all one-sided contract provisions are unconscionable; hence the various intensifiers in our formulations: 'overly harsh,' 'unduly oppressive,' 'unreasonably favorable.'" (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 911, citing *Pinnacle*, 55 Cal.4th at 246, emphasis in original.) To be substantively unconscionable, the agreement must be something more than a mere "bad bargain." (*Ibid.*)

In evaluating substantive unconscionability, courts often look to whether an arbitration agreement meets certain minimum levels of fairness. At a minimum, a mandatory employment arbitration agreement must (1) provide for neutral arbitrators, (2) provide for more than minimal discovery, (3) require a written award that permits limited judicial review, (4) provide for all of the types of relief that would otherwise be available in court, and (5) require the employer to pay the arbitrator's fees and all costs unique to arbitration. Elimination of or interference with any of these basic provisions makes an arbitration agreement substantively unconscionable. (*Armendariz*, 24 Cal.4th at 102-103.)

Plaintiff argues the agreement is substantively unconscionable because it fails to attach the JAMS rules and also conflicts with those same rules. First, plaintiff points to a conflict in whether dispositive motions are allowed without a preliminary showing—something the JAMS rules require, but the agreement here does not. To the extent these rules are in conflict, or were not initially provided, the conflict is minimal and the omission is non-prejudicial. The rules are available to the public online and AAA states it will provide them upon request. As to the conflict, the agreement states it will prevail in such an instance so there is no confusion. That the agreement does not require an "advanced

showing” to the arbitrator for any dispositive motions may differ from what JAMS would normally requires but does not seem outside the reasonable expectations of a party.

Plaintiff also points to the recovery of fees as stated in the confidentiality agreement and how they differ from the provisions in the arbitration agreement. But these are separate agreements and it is permissible for an action relating to trade secrets to carry different consequences from a FEHA action subject to arbitration, for example. Nothing prevents a different structure for fee recovery between the two contracts.

Plaintiff’s contention that the discovery provisions are insufficient under *Armendariz* similarly fails. The reply cites *Vo v. Technology Credit Union* (2025) 108 Cal.App.5th 632, wherein the appellate court reversed a trial court’s finding that an agreement incorporating the JAMS employment rules was substantively unconscionable based on inadequate discovery. (*Id.* at 648.) Like here, the rules at issue allowed one deposition per side as a matter of right but also allowed the arbitrator to determine if there should be more, based upon the “reasonable need for the requested information, the availability of other discovery options and the burdensomeness of the request on the opposing [p]arties and the witness.” (*Vo, supra*, 108 Cal.App.5th at 647, citing *Ramirez, supra*, 16 Cal.5th at 506–507.)

Plaintiff’s argument that arbitrators who expect “repeat business” are therefore biased is not a reason that has been sufficient to deny arbitration, or even enforcement of delegation clauses, which pose even a higher risk of an arbitrator prioritizing their self-interest. (See *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 248-249 [discussing repeat player concerns in context of delegation clauses].)

Defendants sufficiently address all of plaintiff’s points and authorities in their reply. None of the arguments are reasons to find the arbitration agreement here substantively unconscionable. While the “paramount consideration in assessing conscionability is mutuality” (*Alberto v. Cambrian Homecare* (2023) 91 Cal.App.5th 482, 492, citations omitted), an arbitration agreement may legally favor one side without running afoul of the authorities that establish a valid agreement. Deficiencies identified in *Hasty* have been cured and the Court does not find the provisions identified by plaintiff to be unconscionable.

C. Other Cases Involving Third Parties

Plaintiff’s argument that the arbitration agreement should not be enforced due to other cases pending in this county lacks merit. Code of Civil Procedure, section 1281.2 provides, in relevant part:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the **court shall order the petitioner and the respondent to arbitrate the controversy** if it determines that an agreement to arbitrate the controversy exists, **unless it determines** that:

[...]

(c)A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, **arising out of the same transaction or series of related transactions** and there is a possibility of conflicting rulings on a common issue of law or fact. [...]

[...]

If the court determines that a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c), the court [may elect from several options concerning how and if to enforce the agreement].

Plaintiff does not show that this case involves the same transaction or series of transactions. Even if plaintiff made such showing, the procedural rules in the California Arbitration Act are inapplicable where the Federal Arbitration Act's procedural rules govern. As stated in *Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110:

The FAA controls, including section 3, which requires the court to stay the judicial proceeding and compel arbitration. Although section 3 may not generally apply to state courts, here the parties [...] expressly designated their arbitration proceeding "should move forward under the FAA's procedural provisions rather than under state procedural law."

(*Rodriguez, supra*, 136 Cal.App.4th at 1122, citing *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 394.)

Here, paragraph eight ["Governing Law"] of the agreement states: "Interpretation and enforcement of this Agreement shall be governed by the Federal Arbitration Act, 9 U.S.C. § 1 et seq. ("FAA")." Plaintiff does not dispute that the FAA governs. Accordingly, the menu of options under Code of Civil Procedure, section 1281.2(c) is not available.

24. 9:00 AM CASE NUMBER: C26-00638

CIVIL

CASE NAME: KENNETH EVANS VS. DOES 1 TO 30

***HEARING ON MOTION IN RE: STRIKE PLAINTIFFS' COMPLAINT**

FILED BY: MONTEREY VENTURE LP

TENTATIVE RULING:

The hearing on this motion is continued, sua sponte, to October 21, 2026 at 9:00 a.m. The briefing schedule is closed, and no further briefings are permitted. No appearance is required on September 23, 2026.

25. 9:00 AM CASE NUMBER: C26-00638

CIVIL

CASE NAME: KENNETH EVANS VS. DOES 1 TO 30

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: MONTEREY VENTURE LP

TENTATIVE RULING:

The hearing on this motion is continued, sua sponte, to October 21, 2026 at 9:00 a.m. The briefing schedule is closed, and no further briefings are permitted. No appearance is required on September 23, 2026.

26. 9:00 AM CASE NUMBER: MSC22-00052 CIVIL
CASE NAME: SHADELANDS PARK LLC CALIFORNIA LIMITED LIABILITY COMPANY VS. ALLANA BUICK
& BERS INC A CALIFORNIA CORPORATION
*HEARING ON MOTION IN RE: LEAVE TO FILE A 1ST AMENDED CROSS COMPLAINT
FILED BY: THE WHITING-TURNER CONTRACTING COMPANY, A MARYLAND CORPORATION
TENTATIVE RULING:

Cross-Complainant's The-Whiting-Turner Contracting Company's motion for leave to file an amended cross-complaint is **granted**.

Whiting may file and serve its amended-cross-complaint by October 15, 2026. Whiting and ABB are ordered to meet and confer in person or by telephone regarding any potential demurrer by October 6, 2026. Whiting may include changes to its proposed cross-complaint that are responsive to the demurrer arguments raised by ABB. ABB will then be excused from meeting and conferring prior to filing its demurrer. In addition, Whiting has leave to correct the reference to the second cause of action and replace it with the eighth cause of action on page 11 of the proposed amended cross-complaint.

Motion

Whiting filed this motion for leave to file an amended cross-complaint on May 1, 2026. Whiting seeks to add causes of action for equitable indemnity and contribution as to Allana Buick & Bers, INC. (ABB), Colloid Environmental Technologies Company, LLC (CETCO) and Lowney, Inc. ABB opposes this motion.

There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is " 'inexcusable delay and probable prejudice to the opposing party' ... [Citation.]" (*Ibid*; see also, *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 (even assuming there is unreasonable delay, "it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.")).

Rules of Court

ABB argues that the motion did not comply with California Rules of Court, rule 3.1324(a)(3) because the declaration did not state what allegations are proposed. Whiting provided a redlined version of their proposed amendments, which sufficiently complies with this rule. (Brast dec. ¶18 and ex. A.)

Delay

ABB argues that there was inexcusable delay here. Whiting argues that it did not discover the need to name ABB in its cross-complaint until April 2026. Whiting explains that Plaintiff filed a first amended complaint in January 2026. ABB and CETCO answered that complaint in February 2026 and Lowney answered in April 2026. Whiting's attorney declaration states that discovery was restricted at

the beginning of the case and the parties did not begin taking depositions of percipient witnesses until January 2026. (Brast dec. ¶18.) The attorney declaration states that it was not until April 16, 2026, during a deposition that ABB elicited testimony regarding an unsigned contract, which purports to limit ABB's liability. (Brast dec. ¶10.)

ABB points out, however, that the unsigned contract was attached as an exhibit to the initial complaint in this case, which was filed in January 2022. In reply, Whiting notes that it was aware of this unsigned contract in 2022, but was not aware that this particular version of the unsigned contract was what ABB planned to rely on.

ABB argues this situation is similar to *Huber, Hunt & Nichols v. Moore* ("Huber") (1977) 67 Cal.App.3d 278, 292 and *Record v. Reason* ("Record") (1999) 73 Cal.App.4th 472, 486. Both cases are distinguishable. In *Huber*, the amendment added an entirely new cause of action and was sought eight days after trial was called and after the jury had been scheduled. (*Huber, supra*, 67 Cal.App.3d at 292.) In *Record*, a motion for leave to amend to add an intentional tort claim was properly denied on the date the summary judgment motion was heard. (*Record, supra*, 73 Cal.App.4th at 478.) The facts supporting the new intentional tort claim were known to the plaintiff since the date of the accident and no good cause was shown. (*Id.* at 487.)

Whiting also points out that its indemnity claims have not yet accrued. Whiting waited until its reply to cite relevant authority on this point, but it is a well-known general principle of indemnity claims. (*Valley Circle Estates v. VTN Consolidated, Inc.* (1983) 33 Cal.3d 604, 611 [indemnity claim does not accrue until the indemnitee has suffered loss through payment of a judgment or settlement].) Although the claim has likely not yet accrued, that alone would not be sufficient to explain the claimed delay.

While the unsigned contract may have been known since 2022, its importance to this case was not known until April 2026. Whiting filed this motion the following month. Further, discovery in this case was limited until earlier this year, which helps explain why Whiting was not aware of this claim earlier. The Court finds a lack of inexcusable delay here.

Prejudice

ABB argues it is prejudiced because it will introduce new issues into this case because it would now be forced to defend itself against a negligence theory by Whiting and will need to incur additional expense in re-deposing parties whose depositions are already completed. ABB also argues that this case is past the 5-year statute and there is currently an extension of that statute. ABB argues there is not enough time to demur to the cross-complaint, conduct the additional discovery and file a motion for summary judgment. While this case was set for trial in October 2026, that date has been vacated and a new trial date has not been set.

There is no trial date currently set in this case and ABB may raise its concerns about timing for the trial at the trial setting conference. The parties have stipulated to extend the 5-year statute to June 30, 2027. (Stipulation and Order filed 8/24/26.) Further, the fact that there will be increased expenses because of the new claim is not sufficient prejudice. Finally, while ABB may need to re-depose some individuals it's not clear that these would be lengthy depositions. Further, the underlying facts and issues regarding who or what caused the alleged defects here are essentially the

same issues whether in contract or tort. There are some differences, but the need for further depositions should not be too extensive.

Based upon the lack of prejudice and the lack of inexcusable delay the Court grants this motion.

Discovery Law & Motion

27. 9:01 AM CASE NUMBER: C22-02598 CIVIL
CASE NAME: RUBEN HERRERA, JR. VS. CONTRA COSTA COMMUNITY COLLEGE DISTRICT, A CALIFORNIA PUBLIC SCHOOL DISTRICT
***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF RICHARD VILLEGAS AND TANISHA MAXWELL**
FILED BY: HERRERA, RUBEN, JR.
TENTATIVE RULING:
This motion was vacated by moving party. No appearance is required on September 23, 2026.

28. 9:01 AM CASE NUMBER: C24-02882 CIVIL
CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FOR DEFENDANTS' FORM INTERROGATORIES AND SPECIAL INTERROGATORIES**
FILED BY: MCCAMPBELL ANALYTICAL INCORPORATED
TENTATIVE RULING:
Summary

This tentative ruling applies to Lines 28, 29 and 30 pertaining to Defendant McCampbell Analytical Incorporated's Motions filed on January 15, 2026.

1. Motion to Compel Further Responses to Defendant's Form Interrogatories and Special Interrogatories from Plaintiff Michael Nunez;
2. Motion to Compel Further Responses to Defendant's Request for Production of Documents from Plaintiff Michael Nunez;
3. Motion to Compel Further Responses to Defendant's Request for Admissions from Plaintiff Michael Nunez.

The Court **vacates** all three (3) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling.

Background

This action is one of two parallel lawsuits presenting nearly identical allegations that Defendant McCampbell systematically violated California wage-and-hour laws by failing to pay minimum wages and overtime, denying meal and rest periods, issuing inaccurate wage statements, failing to reimburse business expenses, and requiring unlawful waivers of wage claims. The plaintiffs in both cases, Heather Abalos and Michael Nunez, are former McCampbell employees. Both cases assert identical legal theories, seek similar relief on behalf of putative classes, and were scheduled for joint mediation on October 22, 2025. A true and correct copy of Plaintiff Nunez's Complaint is attached as Exhibit 1 to the accompanying Request for Judicial Notice.

On July 30, 2025, Defendants served written discovery on Plaintiff, including Requests for Production of Documents, Form Interrogatories, Special Interrogatories and Requests for Admissions that are the subject of this motion. The initial discovery consisted of 56 Requests for Production, 81 Requests for Admissions, and 181 Special Interrogatories—318 requests total—claiming to seek basic information concerning Plaintiff's employment, compensation, and the factual bases for his claims. After meet and confer efforts, Defendants agreed to limit the scope of discovery in preparation for a mediation. Defendant claims that Plaintiff filed insufficient responses to served discovery, warranting three motions to compel further response. There is now a dispute as to whether there was appropriate "meet and confer" efforts to resolve these discovery disputes.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: "When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon."

The Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are three (3) pending discovery motions on calendar in the matter, scheduled for September 23, 2026. These motions and opposition filed to date consists of over six hundred pages. The Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes. As articulated in Plaintiff's consolidated opposition and in the reply brief, there is even a dispute as to whether counsel engaged in good faith meet and confer efforts.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on September 23, 2026, and any and all subsequently filed discovery motions. The hearing on these discovery motions are vacated from Department 16's calendar and are referred for further hearing to the Discovery Referee.
2. By no later than September 30, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Monday, October 5, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make

- recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
4. Defendants' Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
 5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for September 23, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
 6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

29. 9:01 AM CASE NUMBER: C24-02882 CIVIL
CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANTS'
REQUEST FOR PRODUCTION OF DOCUMENT
FILED BY: MCCAMPBELL ANALYTICAL INCORPORATED
TENTATIVE RULING:
See line 28

30. 9:01 AM CASE NUMBER: C24-02882 CIVIL
CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANTS'
REQUESTS FOR ADMISSION, SET ONE
FILED BY: MCCAMPBELL ANALYTICAL INCORPORATED
TENTATIVE RULING:
See Line 28

Law & Motion
Add On

31. 9:00 AM CASE NUMBER: C23-02401

CIVIL

CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.

PRELIMINARY APPROVAL (SET BY THE COURTROOM)

FILED BY:

TENTATIVE RULING:

Summary

This motion was continued from September 16, 2026 to clarify the issues regarding attorney's fees requested by Class Counsel. Counsel are ordered to appear remotely.

Plaintiffs Kiara Ross, Felicia Costa, and Mark Piepowski ("Plaintiffs") Motion for Preliminary Approval of Class Action Settlement with Defendants Sequoia Equities, Incorporated and Alder Creek Management, Inc.'s (jointly referred to as "Sequoia Equities") is granted as set forth herein. No appearance is required at the hearing on September 16, 2026.

Background and Key Terms

This class action arises from Sequoia Equities deposit administration practices at approximately 67 California apartment complexes. Plaintiffs who are former tenants at Sequoia Equities managed properties, allege systematic violations of California Civil Code § 1950.5. Specifically, Plaintiffs contend that Sequoia Equities uniformly failed to provide itemized statements with supporting vendor invoices within the statutorily mandated 21-day period after tenants vacated, and improperly reported unsubstantiated alleged debts to collection agencies, damaging tenants' credit.

The litigation commenced in September 2023. Following initial discovery disputes, the parties entered into a comprehensive stipulation in December 2024, streamlining the case for mediation. Pursuant to that stipulation, Defendants produced a randomized 20% sample of tenant files comprising over 608,000 pages of documents, including Final Accounting Statements ("FAS Packets"). Plaintiffs' counsel manually reviewed 1,048 FAS Packets and determined that approximately 85.6% were non-compliant with Civil Code section 1950.5, as they lacked required vendor invoices and instead contained only internally generated estimates or rate sheets.

The parties participated in a full-day mediation on October 17, 2025, before the Honorable Peter D. Lichtman (Ret.). Though mediation did not immediately produce settlement, the parties accepted Judge Lichtman's mediator's proposal on November 26, 2025. Following months of negotiation, the parties executed a comprehensive Settlement Agreement.

The Settlement creates two subclasses: (1) the Security Deposit Class, comprising approximately 15,000 former tenants whose leaseholds terminated between September 25, 2019, and the date of preliminary approval, who had in excess of \$125 deducted from their security deposits without receiving supporting invoices; and (2) the Defamation Class, comprising approximately 2,000 former tenants who were reported to collection agencies for alleged post-deposit balances. The Defamation Class excludes debts reduced to judgment.

The Gross Settlement Amount totals approximately \$3.1 million, consisting of \$1.8 million in cash and \$1.3 million in debt relief for the Defamation Class. After deductions for settlement

administration costs (capped at \$50,000), attorneys' fees (up to 33.3% of the Total Settlement Amount), litigation expenses, and service payments to the three Named Plaintiffs (capped at \$10,000 each, totaling \$30,000), the Net Settlement Amount will be allocated 90% to the Security Deposit Class and 10% to the Defamation Class.

The Security Deposit Class will utilize a claims-made distribution structure, with estimated individual recoveries between \$132.14 and \$480 assuming a 10-35% claims rate. The Defamation Class will receive automatic pro rata distributions without a claims process, with estimated individual recoveries of approximately \$660 (comprising debt relief and cash). Defendants have agreed to cease all collection efforts against Defamation Class members. Unclaimed funds from the Security Deposit Class will be distributed via cy pres to the California State Bar Justice Gap Fund, with no governance role for the parties or counsel.

The Settlement provides a broad release of all claims arising from or relating to the facts alleged in the operative complaint, including claims under Civil Code section 1950.5, the Unfair Competition Law (Bus. & Prof. Code §§ 17200 et seq.), Negligence, and Defamation. The Named Plaintiffs will execute broader general releases with Civil Code section 1542 waivers. The Settlement is contingent upon preliminary and final approval by this Court, and the parties stipulate to conditional class certification for settlement purposes only.

The proposed notice program includes direct mail and email distribution by Xpand Legal, a third-party administrator with experience in Section 1950.5 class actions, with notice translated into Spanish. Class members will have 45 days to opt out or object. The parties seek preliminary approval, conditional class certification, approval of the notice program, and scheduling of a final approval hearing.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Mgmt., LLC*, supra, 69 Cal.App.5th 521.)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

Plaintiff seeks attorney fees of \$599,400.00 representing one-third of the total settlement amount of \$1.8 million, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the lodestar cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.* at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, reasonable litigation costs and the requested representative payment of \$10,000 for each named plaintiff will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Court having considered Plaintiffs' Unopposed Motion for Preliminary Approval of Class Action Settlement, the Memorandum of Points and Authorities, the Declaration of Jeffrey L. Hogue, the Class Action Settlement and Release Agreement and Addendum, all exhibits thereto, and the files and records in this action; and good cause appearing therefor, the Court finds and orders as follows:

CONCLUSION AND ORDERS

1. The Court conditionally certifies the following Settlement Classes pursuant to Code of Civil Procedure section 382 and California Rule of Court 3.769 for settlement purposes only:

a. Security Deposit Class: All former tenants of Defendants' California properties whose leaseholds terminated between September 25, 2019, and the date of preliminary approval of this Settlement, and who had in excess of \$125 of their security deposits retained for cleaning, repairs, and/or replacements combined, without supporting invoices as required by Civil Code section 1950.5.

b. Defamation Class: All former tenants who were reported to a collection agency as a result of any monies allegedly owed for turnover charges after disposition of their security deposit(s), excluding any debts that have been reduced to judgment, between September 25, 2019, and the date of preliminary approval.

2. The Court finds that the Settlement Classes satisfy the requirements of Code of Civil Procedure section 382: (a) the classes are sufficiently numerous (approximately 15,000 Security Deposit Class members and 2,000 Defamation Class members), making joinder impracticable; (b) common questions of law and fact predominate concerning Defendants' uniform security deposit administration practices and collection reporting procedures; (c) the claims of the Named Plaintiffs are typical of the Settlement Classes; and (d) the Named

Plaintiffs and Class Counsel will adequately represent the Settlement Classes' interests. The Court further finds that a class action is superior to other available methods for the fair and efficient adjudication of this controversy.

3. The Court preliminarily approves the Class Action Settlement and Release Agreement, including Addendum No. 1 (collectively, the "Settlement Agreement"), attached as Exhibit 1 to the Declaration of Jeffrey L. Hogue, as fair, reasonable, and adequate within the meaning of Code of Civil Procedure section 382 and California Rule of Court 3.769.

4. The Court finds that the Settlement is the product of serious, informed, non-collusive, arms-length negotiations conducted by experienced counsel, with the assistance of a neutral mediator, the Honorable Peter D. Lichtman (Ret.).

5. The Court finds that the \$3.1 million gross settlement (\$1.8 million cash plus \$1.3 million debt relief), with the Net Settlement Amount allocated 90% to the Security Deposit Class and 10% to the Defamation Class, falls within the range of reasonableness considering the risks of continued litigation, the strength of Plaintiffs' claims, the stage of proceedings, and the substantial benefits to be provided to the Settlement Classes.

6. The Court finds that the Settlement is contingent upon final approval by this Court and that the parties have stipulated to conditional class certification for settlement purposes only.

7. The Court approves the notice program described in the Settlement Agreement and designates Xpand Legal, Consulting as the Settlement Administrator.

8. The Court finds that the proposed notice, distributed via direct mail and email to the last known addresses of Settlement Class Members, with publication on a dedicated settlement website and translation into Spanish, constitutes the best practicable notice under the circumstances and satisfies the requirements of California Rule of Court 3.769(f) and due process.

9. The Court finds that the notice fairly apprises Settlement Class Members of: (a) the nature of the action and the Settlement; (b) their right to opt out of the Settlement; (c) their right to object to the Settlement; (d) the procedure for submitting claims (for Security Deposit Class members); and (e) the date of the final approval hearing.

10. A hearing for final approval of the Settlement ("Final Approval Hearing") will be scheduled in Department 16 no later than one (1) year from the date of entry of this order. Counsel shall contact the Departmental Clerk to request a hearing date.

11. The Court will consider at the Final Approval Hearing: (a) whether to grant final approval of the Settlement; (b) any objections thereto; (c) the application for attorneys' fees and costs; and (d) the applications for service payments to the Named Plaintiffs.

12. The Settlement Administrator is authorized to administer the Settlement in accordance with the terms of the Settlement Agreement, including: (a) processing and verifying claims; (b) calculating pro rata distributions; (c) maintaining the Qualified Settlement Fund; and (d) distributing funds to eligible Settlement Class Members.

13. The Settlement Administrator shall file with the Court and serve on Class Counsel and Defendants' Counsel periodic reports regarding the claims process, including the number of claims received, approved, and denied.

14. Settlement Class Members who wish to exclude themselves from the Settlement must submit a written request for exclusion postmarked no later than 45 days from the date of mailing of the notice, or such other date as the Court may establish.

15. Settlement Class Members who wish to object to the Settlement must file their objections with the Court and serve them on Class Counsel and Defendants' Counsel no later than 30 days prior to the Final Approval Hearing, or such other date as the Court may establish.

16. If the Settlement is not finally approved, or if the Court's approval is reversed or vacated on appeal, this Order shall be vacated, the Settlement shall be null and void, and the parties shall resume litigation as if no settlement had been reached. The conditional class certification granted herein shall not be binding in any subsequent litigation.

17. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, attaching a copy of this ruling. Where there is a conflict in the provisions of the proposed order and this ruling, the terms of this ruling prevail.